

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tomiche Martinez	Team: Squad #12	CCRB Case #: 202410768	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Sunday, 09/15/2024 1:42 PM, Sunday, 09/15/2024 1:49 PM	Location of Incident: 2195 Frederick Douglass Blvd in Manhattan; 28th Precinct stationhouse	18 Mo. SOL 3/15/2026	Precinct: 28		
Date/Time CV Reported Tue, 10/29/2024 12:26 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 10/29/2024 12:26 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Darian Wesler	31124	965903	PBMN SU PST
2. PO Emanuel Crespo	16149	957496	PBMN SU PST
3. PO Grant Pulgarin	30565	965430	PBMN SU PST

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Charlie Ruizreyes	25922	964266	032 PCT
2. PO Morgan Benedetti	03531	972527	020 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Darian Wesler	Force: At 2195 Frederick Douglass Boulevard in Manhattan, Police Officer Darian Wesler used physical force against § 87(2)(b)	A . Within NYPD Guidelines
B . PO Darian Wesler	Abuse: At 2195 Frederick Douglass Boulevard in Manhattan, Police Officer Darian Wesler improperly used his body-worn camera.	B . Substantiated
C . PO Grant Pulgarin	Abuse: At 2195 Frederick Douglass Boulevard in Manhattan, Police Officer Grant Pulgarin improperly used his body-worn camera.	C . Substantiated
D . PO Darian Wesler	Discourtesy: At 2195 Frederick Douglass Boulevard in Manhattan, Police Officer Darian Wesler spoke discourteously to § 87(2)(b)	D . Unable to Determine
E . PO Grant Pulgarin	Force: At 2195 Frederick Douglass Boulevard in Manhattan, Police Officer Grant Pulgarin hit § 87(2)(b) against a wall.	E . Within NYPD Guidelines
F . PO Darian Wesler	Force: At 2195 Frederick Douglass Boulevard in Manhattan, Police Officer Darian Wesler hit § 87(2)(b) against a wall.	F . Within NYPD Guidelines
G . PO Darian Wesler	Force: At 2195 Frederick Douglass Blvd in Manhattan, Police Officer Darian Wesler used physical force against § 87(2)(b)	G . Unable to Determine
H . PO Darian Wesler	Force: At 2195 Frederick Douglass Boulevard in Manhattan, Police Officer Darian Wesler hit § 87(2)(b) against the ground.	H . Within NYPD Guidelines
I . PO Grant Pulgarin	Force: At 2195 Frederick Douglass Boulevard in Manhattan, Police Officer Grant Pulgarin hit § 87(2)(b) against the ground.	I . Within NYPD Guidelines

Officer(s)	Allegation	Inv. Div. Recommendation
J . PO Emanuel Crespo	Abuse: At 2195 Frederick Douglass Boulevard in Manhattan, Police Officer Emanuel Crespo frisked § 87(2)(b)	J . Within NYPD Guidelines
K . PO Emanuel Crespo	Abuse: At 2195 Frederick Douglass Boulevard in Manhattan, Police Officer Emanuel Crespo searched § 87(2)(b)	K . Within NYPD Guidelines
L . PO Darian Wesler	Abuse: At the 28th Precinct stationhouse, Police Officer Darian Wesler detained § 87(2)(b)	L . Substantiated

Case Summary

§ 87(2)(b) filed this complaint CCRB via the CCRB's Call Processing System on October 29, 2024. § 87(2)(b) a reporting non-witness, filed on behalf of her 17-year-old son, § 87(2)(b) § 87(2)(b)

On September 15, 2024, at approximately 3:42 PM, PO Darian Wesler of Patrol Borough Manhattan North Specialized Unit Public Safety Team, who was with PO Grant Pulgarin and PO Emanuel Crespo of Patrol Borough Manhattan North Specialized Unit Public Safety Team, PO Charlie Ruizreyes of the 32nd Precinct, and PO Morgan Benedetti of the 20th Precinct, pushed § 87(2)(b) off of his bicycle (**Allegation A: Force, Within NYPD Guidelines**). PO Wesler and PO Pulgarin improperly used their body-worn cameras (BWC) by activating late (**Allegations B and C: Abuse of Authority, Substantiated**). PO Wesler allegedly said, "Get that little shit," about § 87(2)(b) (**Allegation D: Discourtesy, Unable to Determine**). PO Wesler and PO Pulgarin pushed § 87(2)(b) against a wall (**Allegations E and F: Force, Within NYPD Guidelines**). PO Wesler allegedly kicked § 87(2)(b) legs out from under him (**Allegation G: Force, Unable to Determine**). PO Wesler and PO Pulgarin pushed § 87(2)(b) against the ground (**Allegations H and I: Force, Within NYPD Guidelines**). PO Crespo frisked and searched § 87(2)(b) (**Allegations J and K: Abuse of Authority, Within NYPD Guidelines**). PO Wesler detained § 87(2)(b) at the 28th Precinct stationhouse (**Allegation L: Abuse of Authority, Substantiated**), where PO Wesler issued § 87(2)(b) a summons for disorderly conduct.

The investigation obtained BWC videos recorded by PO Wesler, PO Pulgarin, PO Crespo, PO Ruizreyes, and PO Benedetti (Board Review 01), summarized in IA #49 (Board Review 02).

Findings and Recommendations

Allegation (A) Force: At 2195 Frederick Douglass Boulevard in Manhattan, Police Officer Darian Wesler used physical force against § 87(2)(b)

§ 87(2)(b) provided a statement to the CCRB on November 6, 2024 (Board Review 03). § 87(2)(b) was riding his bicycle in Manhattan with a large group of people. There was a heavy police presence on the street where he was riding. The officers were parked on the side of the road, apparently waiting for the group of bicyclists. § 87(2)(b) was riding in the bicycle lane. He tried to maneuver between an unmarked police vehicle to his right and a parked vehicle to his left. PO Wesler suddenly opened the back door of the police vehicle. PO Wesler did not announce himself as police or issue any instructions. PO Wesler grabbed § 87(2)(b) handlebars and his right arm, causing § 87(2)(b) to swerve into the parked car. § 87(2)(b) hit the hood of the car and fell off his bicycle. PO Wesler asked § 87(2)(b) what was wrong with him and said that § 87(2)(b) had almost killed him. § 87(2)(b) did not realize initially that PO Wesler was a police officer. § 87(2)(b) told PO Wesler that he had jumped out of the car into § 87(2)(b) path. § 87(2)(b) ran from PO Wesler.

In PO Wesler's BWC video (Board Review 04), at 0 minutes 0 seconds, PO Wesler rides in the front passenger seat of a police vehicle. A large group of people are riding bicycles in the wrong direction, against traffic, in the middle of the street and in the bicycle lane. At 0 minutes 33 seconds, PO Wesler exits the vehicle into oncoming bicycle traffic. PO Wesler pushes § 87(2)(b) off of his bicycle. When viewed frame-by-frame (possible by pressing the "E" key in VLC), the video shows that PO Wesler places his right hand against § 87(2)(b) right shoulder and pushes § 87(2)(b) away, causing § 87(2)(b) to fall from his bicycle. § 87(2)(b) falls against the hood

of a parked vehicle. § 87(2)(b) then runs from PO Wesler.

PO Wesler provided a statement to the CCRB on January 17, 2025 (Board Review 05). PO Wesler stated that via radio, he received a report of a disorderly crowd near 2195 Fredericks Frederick Douglas Boulevard in Manhattan. PO Wesler observed a group of at least 100 people riding their bicycles against traffic in the middle of the street and in the bicycle lane. PO Wesler did not observe § 87(2)(b) from his vehicle. PO Wesler was not ready to take enforcement action when he exited his vehicle. PO Wesler could not recall any discussion with any other officers in his vehicle about how to handle the disorderly crowd before PO Wesler exited the vehicle. PO Wesler could not recall if his window was rolled down or if he issued anyone instructions from within the vehicle. PO Wesler exited the vehicle intending to think of a plan to stop the disorderly group of bicyclists. PO Wesler could not recall if he issued any commands to any of the cyclists when he first exited his vehicle.

As PO Wesler exited his vehicle, out of the corner of his eye, he saw § 87(2)(b) bicycle headed in his direction. § 87(2)(b) was riding against traffic and blocking vehicular traffic, which constituted disorderly conduct, per penal law 240.20(5). § 87(2)(b) was also riding without a helmet. PO Wesler did not believe that § 87(2)(b) was the first cyclist to pass when he opened his door. The other cyclists were approximately a few feet away from him as they passed. § 87(2)(b) was less than arm's reach away. PO Wesler believed § 87(2)(b) was going to collide with him. § 87(2)(b) was dangerously close to PO Wesler. PO Wesler extended his arm and pivoted to his right to avoid § 87(2)(b) running him over with his bicycle. PO Wesler could not recall if he issued § 87(2)(b) any verbal command. PO Wesler could not recall where he was in relation to the car door he had just opened. PO Wesler believed he was positioned at the edge of the door, but could not recall exactly. PO Wesler could not recall whether his body was behind the door.

PO Wesler extended his arm and made contact with § 87(2)(b) got off his bicycle and ran on foot. PO Wesler did not extend his arm to affect a stop for the offenses that § 87(2)(b) was committing. Rather, PO Wesler extended his arm to protect himself. PO Wesler did not push or shove § 87(2)(b) PO Wesler's intention when he extended his arm was to maintain distance between himself and § 87(2)(b) and to prevent § 87(2)(b) colliding with him. PO Wesler chose to create space by extending his arm, rather than stepping back or moving his body somewhere else, because this happened quickly, and that was the only way to create space quickly enough without § 87(2)(b) colliding with him. PO Wesler could not recall if § 87(2)(b) fell against a parked vehicle. PO Wesler did not push § 87(2)(b) into a parked vehicle.

Per NYPD Patrol Guide Procedure 221-01 (Board Review 06), officers may use force when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody.

BWC video shows that § 87(2)(b) was riding his bicycle against traffic in close proximity to PO Wesler as PO Wesler exited the police vehicle. § 87(2)(g)

§ 87(2)(b) the video shows that he did push § 87(2)(b) off of his bicycle. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation A** be closed as **Within NYPD Guidelines**.

Allegation (B) Abuse of Authority: At 2195 Frederick Douglass Boulevard in Manhattan, Police Officer Darian Wesler improperly used his body-worn camera.

Allegation (C) Abuse of Authority: At 2195 Frederick Douglass Boulevard in Manhattan, Police Officer Grant Pulgarin improperly used his body-worn camera.

Allegation (D) Discourtesy: At 2195 Frederick Douglass Boulevard in Manhattan, Police Officer Darian Wesler spoke discourteously to § 87(2)(b)

Allegation (E) Force: At 2195 Frederick Douglass Boulevard in Manhattan, Police Officer Grant Pulgarin hit § 87(2)(b) against a wall.

Allegation (F) Force: At 2195 Frederick Douglass Boulevard in Manhattan, Police Officer Darian Wesler hit § 87(2)(b) against a wall.

Allegation (G) Force: At 2195 Frederick Douglass Blvd in Manhattan, Police Officer Darian Wesler used physical force against § 87(2)(b)

Allegation (H) Force: At 2195 Frederick Douglass Boulevard in Manhattan, Police Officer Darian Wesler hit § 87(2)(b) against the ground.

Allegation (I) Force: At 2195 Frederick Douglass Boulevard in Manhattan, Police Officer Grant Pulgarin hit § 87(2)(b) against the ground.

§ 87(2)(b) (Board Review 03) stated that he ran from PO Wesler. PO Wesler said, “Get that little shit,” as he pursued § 87(2)(b) ran across the street and onto the sidewalk. § 87(2)(b) turned around. Four police officers were chasing him. § 87(2)(b) stopped running. PO Wesler grabbed § 87(2)(b) arms and hands from behind and pulled them behind his back. PO Wesler pulled § 87(2)(b) to a building approximately five feet away, and § 87(2)(b) hit his chin on the building. PO Wesler kicked § 87(2)(b) legs out from under him, and § 87(2)(b) fell to his knees. § 87(2)(b) cut his left knee on the ground. PO Wesler did not say anything to § 87(2)(b) as he took him to the ground. PO Wesler said that § 87(2)(b) was resisting, but § 87(2)(b) did not physically resist PO Wesler’s actions. § 87(2)(b) did not tense his arms or go limp. PO Wesler and PO Pulgarin handcuffed § 87(2)(b) on the ground.

In PO Wesler’s BWC video (Board Review 04), at 0 minutes 38 seconds, § 87(2)(b) flees on foot. PO Wesler pursues. PO Wesler’s BWC is not yet activated. At 0 minutes 49 seconds, § 87(2)(b) stops running and the officers catch up to him. PO Pulgarin moves § 87(2)(b) against the wall of a building. At 0 minutes 52 seconds, PO Wesler places his hand on § 87(2)(b) head. It is unclear if § 87(2)(b) head comes in contact with the wall. At 0 minutes 53 seconds, PO Wesler and PO Pulgarin grab § 87(2)(b) arms. At 0 minutes 54 seconds, PO Wesler and PO Pulgarin take § 87(2)(b) to the ground. Their legs are not visible in the video, and it is unclear if PO Wesler or PO Pulgarin kick § 87(2)(b) legs out from under him. At 1 minute 0 seconds, PO Wesler activates his BWC. PO Pulgarin and PO Wesler tell § 87(2)(b) to stop resisting. § 87(2)(b) says that he is not resisting. PO Pulgarin handcuffs § 87(2)(b)

In PO Pulgarin’s first BWC video (Board Review 07), at 0 minutes 0 seconds, PO Pulgarin rides in the front passenger seat of a police vehicle. Several people on bicycles ride past. At 0 minutes 25 seconds, PO Pulgarin exits the police vehicle. PO Pulgarin pursues § 87(2)(b) between 0 minutes 25 seconds and 0 minutes 38 seconds. § 87(2)(b) then stops running. At 0 minutes 38 seconds, PO Pulgarin backs § 87(2)(b) against the wall of a building. It is unclear if § 87(2)(b) head comes into contact with the wall. At 0 minutes 41 seconds, PO Pulgarin and PO Wesler take § 87(2)(b) to the ground. It is unclear if PO Pulgarin or PO Wesler § 87(2)(b) legs out from under him. At 0 minutes 50 seconds, PO Pulgarin handcuffs § 87(2)(b) At 1 minute 0 seconds, PO Pulgarin activates his BWC.

As noted, PO Wesler (Board Review 05) stated that that via radio, he received a report of a disorderly crowd, went to the area, and observed a group of at least 100 people riding their bicycles

against traffic. PO Wesler stated that he was not ready to take enforcement action when he exited his vehicle and could not recall any discussion with any of his fellow officers about how to handle the disorderly crowd. Subsequently, when § 87(2)(b) fled and PO Wesler pursued, PO Wesler's intention at that time was to stop § 87(2)(b) and issue him a summons for disorderly conduct. PO Wesler could not recall if he said anything to § 87(2)(b) as he followed him. PO Wesler did not say, "Get that little shit." PO Wesler did not refer to § 87(2)(b) as a "shit" or otherwise use profanity. When PO Wesler apprehended § 87(2)(b) PO Wesler put his hand on § 87(2)(b) head. PO Wesler was trying to get his arm around PO Pulgarin's arm. PO Wesler did not push § 87(2)(b) against a building or take any action that caused § 87(2)(b) head to hit the building. PO Wesler did not use a forcible takedown to get § 87(2)(b) to the ground. § 87(2)(b) dropped onto his knees voluntarily. PO Wesler did not kick § 87(2)(b) legs out from under him. The officers then handcuffed § 87(2)(b) PO Wesler activated his BWC after § 87(2)(b) was in handcuffs. PO Wesler took enforcement action by pursuing § 87(2)(b) but did not activate his BWC while pursuing § 87(2)(b) PO Wesler was required to have his BWC activated while pursuing § 87(2)(b) and was not physically prevented from activating his BWC, but he did not activate his BWC sooner because it was an exigent circumstance. § 87(2)(b) almost hit PO Wesler with his bicycle and then fled on foot. PO Wesler was required to have his BWC activated while pursuing § 87(2)(b) but in that circumstance, PO Wesler was not thinking about his body-worn camera. PO Wesler was thinking about his safety and the other officers' safety. To activate his BWC, PO Wesler presses the button on the BWC twice, which takes less than one second.

PO Pulgarin provided a statement to the CCRB on February 17, 2025 (Board Review 08). He also stated that he went to the area to address a large group of reckless cyclists reported via radio. His captain had directed the officers to look out for the cyclists. PO Pulgarin observed a large group of cyclists riding in the wrong direction on a one-way street, riding recklessly, and being disorderly. PO Pulgarin did not have a specific plan to address the cyclists. PO Pulgarin's only plan was to stop someone and issue a summons. PO Pulgarin saw PO Wesler's door open, but he could not see what action PO Wesler took. PO Wesler and § 87(2)(b) exchanged words, and § 87(2)(b) ran. PO Pulgarin immediately exited his vehicle intending to assist in the apprehension of § 87(2)(b) PO Pulgarin did not activate his body-worn camera when he decided to assist in the apprehension of § 87(2)(b) PO Pulgarin would have activated his BWC when he exited the vehicle if he had time to do so. PO Pulgarin activates his BWC by double clicking its button, which takes one second. PO Pulgarin is required to activate his BWC upon exiting his vehicle when he is able to do so, absent exigent circumstances. There were exigent circumstances in that § 87(2)(b) fled and PO Pulgarin had to take immediate police action. PO Pulgarin ran after § 87(2)(b) When § 87(2)(b) stopped running, PO Pulgarin grabbed § 87(2)(b) somewhere around the arm. § 87(2)(b) may have made contact with the wall of the building. At the time, § 87(2)(b) was stepping backward. PO Pulgarin did not push § 87(2)(b) against the building. The officers instructed § 87(2)(b) to get on the ground. § 87(2)(b) dropped down onto the ground. PO Pulgarin did not kick § 87(2)(b) legs out from under him. PO Pulgarin was holding onto § 87(2)(b) arm when § 87(2)(b) dropped to the ground, but PO Pulgarin did not take § 87(2)(b) to the ground.

Per NYPD Patrol Guide Procedure 212-123, "Use of Body-Worn Cameras" (Board Review 09), members of service must activate BWC prior to engaging in any police action, as well as law enforcement or investigative activity conducted in furtherance of official duties. Police action includes any self-initiated investigative or enforcement actions. Members of service must begin recording prior to arrival at an incident location or prior to commencing any self-initiated police action. Members of service should activate BWCs as soon as it is feasible and safe to do so after taking necessary action to preserve human health and safety, when an unanticipated or exigent occurrence takes place.

The NYPD's Body Worn Cameras: Impact and Use Policy (Board Review 10) states that BWC audio begins recording when an officer activates their BWC, and that the period of video preceding audio is a "buffer" period, before the officer activates their BWC.

The NYPD's stated Mission, Vision, and Values (Board Review 23), as articulated in the Patrol Guide, require officers to render services with courtesy and civility.

Per NYPD Patrol Guide Procedure 221-01 (Board Review 06), officers may use force when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody, including flight.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] BWC video confirms that § 87(2)(b) nearly struck and then fled from PO Wesler. § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] it is recommended that **Allegation B** be closed as **Substantiated**.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
However, like PO Wesler, PO Pulgarin went to the area specifically to address the group of cyclists reported via radio, and at the direction of his captain. § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegation C** be closed as **Substantiated**.

PO Wesler denied saying, "Get that little shit." § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegation D** be closed as **Unable to Determine**.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegations E and F** be closed as **Within NYPD Guidelines**.

It is unclear if PO Wesler kicked § 87(2)(b) legs out from under him, as § 87(2)(b) and the officers' legs were not in the videos' frames when he was taken to the ground. § 87(2)(g) [REDACTED]
[REDACTED] it is recommended that **Allegation G** be closed as **Unable to Determine**.

§ 87(2)(g)

§ 87(2)(b) BWC video does not show how § 87(2)(b) came to be on the ground, BWC video clearly shows PO Wesler and PO Pulgarin pressing § 87(2)(b) against the concrete to handcuff him. § 87(2)(g)

It is therefore recommended that **Allegations H and I** be closed as **Within NYPD Guidelines**.

Allegation (J) Abuse of Authority: At 2195 Frederick Douglass Boulevard in Manhattan, Police Officer Emanuel Crespo frisked § 87(2)(b)

Allegation (K) Abuse of Authority: At 2195 Frederick Douglass Boulevard in Manhattan, Police Officer Emanuel Crespo searched § 87(2)(b)

§ 87(2)(b) (Board Review 03) stated that PO Wesler searched him. § 87(2)(b) was wearing a short-sleeved T-shirt and shorts. § 87(2)(b) had front pockets. He had his phone in his right pocket and his earbuds and a small candy in his left pocket. PO Wesler reached into § 87(2)(b) pockets and removed these items. § 87(2)(b) did not feel PO Wesler pat him down before reaching into his pockets. PO Wesler and PO Pulgarin then took § 87(2)(b) to a police vehicle. PO Wesler asked if § 87(2)(b) had any weapons. PO Wesler transported § 87(2)(b) to the stationhouse. At the stationhouse, PO Wesler issued § 87(2)(b) a summons and released him.

BWC video shows that PO Crespo, and not PO Wesler, frisked and searched § 87(2)(b)

In PO Pulgarin's first BWC video (Board Review 07), at 0 minutes 55 seconds, PO Crespo kneels on the ground beside § 87(2)(b) PO Wesler, and PO Pulgarin. PO Crespo grabs § 87(2)(b) left shorts pocket. At 0 minutes 56 seconds, PO Crespo squeezes § 87(2)(b) left shorts pocket. PO Crespo unzips the pocket and reaches inside. The officers lift § 87(2)(b) to his feet and walk him to a police vehicle.

In PO Crespo's first BWC video (Board Review 11), at 1 minutes 13 seconds, PO Crespo approaches § 87(2)(b) PO Wesler, and PO Pulgarin. § 87(2)(b) pocket and PO Crespo's hands are out of frame. The officers walk him back to the police vehicle. At 2 minutes 30 seconds, PO Crespo and § 87(2)(b) are standing in front of a police vehicle. PO Crespo says, "I'm going to toss him one more time." PO Crespo asks § 87(2)(b) if he has anything on him. § 87(2)(b) says no and that he has AirPods in his pocket. PO Crespo asks § 87(2)(b) if he has any weapons. § 87(2)(b) says that he does not. PO Crespo's left hand and § 87(2)(b) right side are out of frame as PO Crespo apparently frisks and/or searches. At 2 minutes 44 seconds, PO Crespo holds § 87(2)(b) AirPods and other belongings in his hand. PO Crespo places § 87(2)(b) in the police vehicle.

PO Crespo provided a statement to the CCRB on February 13, 2025 (Board Review 12). PO Crespo stated that he saw PO Pulgarin exit their police vehicle and start running. PO Crespo followed PO Pulgarin. PO Crespo caught up to PO Pulgarin. PO Pulgarin and PO Wesler had § 87(2)(b) in handcuffs. Nothing indicated that § 87(2)(b) had a weapon. PO Crespo could not recall what § 87(2)(b) was wearing. PO Crespo frisked § 87(2)(b) pockets. He did this because § 87(2)(b) was already in handcuffs, meaning that he was under arrest. PO Crespo did not recall what he felt when he first frisked § 87(2)(b) but he felt an object. PO Crespo could not recall what that object felt like. PO Crespo was not able to see that object prior to touching § 87(2)(b) pocket. PO Crespo reached into § 87(2)(b) pocket. PO Crespo could not recall what he felt when he reached into § 87(2)(b) pocket. PO Crespo did not remove anything from the pocket because he did not feel a

weapon. The basis for this search was the fact that § 87(2)(b) was in handcuffs. When a person is in handcuffs, that is automatically an arrest. It was PO Wesler's arrest. PO Crespo only searched § 87(2)(b) because that is standard arrest procedure. PO Crespo frisked § 87(2)(b) again at the police vehicle. PO Crespo frisked § 87(2)(b) again because before officers put anyone in a vehicle, they must check one or two more times to make sure that the person is not going into the vehicle with any weapons, or to make sure they do not try to discard contraband. PO Crespo reached into § 87(2)(b) pockets and removed AirPods. He could not recall if he removed anything else from § 87(2)(b) pockets. The officers then put § 87(2)(b) into an unmarked vehicle and took him to the 28th Precinct stationhouse, where § 87(2)(b) was issued a summons.

As noted above, both PO Wesler (Board Review 05) and PO Pulgarin (Board Review 08) stated that they pursued § 87(2)(b) intending to issue him a summons.

People v. Gamble, 210 A.D.2d 903 (Board Review 14), states an officer may conduct a pat down frisk as a routine safety measure preliminary to transporting a suspect in a police vehicle.

NYPD Patrol Guide Procedures 208-05 and 210-01 (Board Review 27 and 28) instruct members of service to search prisoners prior to transport.

It is undisputed that PO Crespo frisked and searched § 87(2)(b) twice, once when § 87(2)(b) was on the ground handcuffed and again prior to § 87(2)(b) being placed in a police vehicle for transport to the stationhouse. § 87(2)(g)

It is therefore recommended that **Allegations J and K** be closed as **Within NYPD Guidelines**.

Allegation (L) Abuse of Authority: At the 28th Precinct stationhouse, Police Officer Darian Wesler detained § 87(2)(b)

§ 87(2)(b) (Board Review 03) stated PO Wesler transported him to the stationhouse and issued him a summons for disorderly conduct. PO Wesler took § 87(2)(b) to a back room inside of the stationhouse and handcuffed him to a chair for five minutes while PO Wesler wrote him a summons. PO Wesler told § 87(2)(b) that he would see him in court and escorted him to the front entrance of the stationhouse. § 87(2)(b) was at the stationhouse for approximately five minutes.

§ 87(2)(b) received criminal summons (C-Summons) § 87(2)(b) (Board Review 16). The listed offense is "obstructs vehicular or pedestrian traffic," in violation of Penal Law 240.20(5). The narrative states, "at tpo deft was observed driving a bicycle recklessly in the middle of the roadway almost striking officer with bicycle." The summons lists PO Wesler as the reporting officer.

In PO Wesler's BWC video (Board Review 04), at 1 minute 15 seconds, the officers successfully handcuff § 87(2)(b) and lift him to his feet. There are three passersby on the street. There is no crowd present. The officers walk § 87(2)(b) to the police vehicle between 1 minute 19 seconds and 2 minutes 15 seconds. There is no crowd present. At 1 minute 31 seconds, there are groups of individuals at the northwest and southwest corners of Frederick Douglass Boulevard and West 119th Street. Some individuals are standing on the sidewalk and others are on bicycles. An individual calls out to § 87(2)(b) says his name, § 87(2)(b) and later spells his last name. These individuals are not in close proximity to the officers or § 87(2)(b). At 1 minute 44 seconds, the officers walk § 87(2)(b) past the group of individuals to the police vehicle. There are

passersby and cyclists, but there is no crowd. At 2 minutes 15 seconds, § 87(2)(b) and the officers arrive at the police vehicle. There is an individual riding a bicycle in the middle of the street. There is no crowd. No one approaches the officers or otherwise interferes. At 3 minutes 52 seconds, PO Wesler enters the police vehicle. PO Wesler, PO Ruizreyes, and PO Benedetti transport § 87(2)(b) to the 28th Precinct stationhouse. At 6 minutes 54 seconds, the officers and § 87(2)(b) arrive at the stationhouse. At 7 minutes 49 seconds, PO Wesler and PO Ruizreyes walk § 87(2)(b) to the desk. PO Wesler takes § 87(2)(b) information. At 11 minutes 05 seconds, PO Wesler says, “Put him in the juvey room.” PO Pulgarin leads § 87(2)(b) away.

In PO Pulgarin’s second BWC video (Board Review 17), at 0 minutes 35 seconds, PO Pulgarin approaches § 87(2)(b) and the other officers at the desk inside of the stationhouse. At 0 minutes 55 seconds, PO Pulgarin leads § 87(2)(b) away to a small room. At 1 minute 15 seconds, PO Pulgarin uncuffs and then re-cuffs § 87(2)(b) to a bench. At 1 minute 40 seconds, PO Pulgarin deactivates his BWC as he leaves the room.

There is no BWC video capturing § 87(2)(b) release from the stationhouse.

PO Wesler (Board Review 05) stated that he observed § 87(2)(b) committing disorderly conduct by riding against traffic and blocking vehicular traffic in violation of penal law 240.20(5). PO Wesler pursued § 87(2)(b) to issue him a summons for disorderly conduct. The officers then handcuffed § 87(2)(b) and transported him to the 28th Precinct stationhouse, where PO Wesler issued a summons for disorderly conduct. The officers detained § 87(2)(b) at the stationhouse in order to issue the summons. PO Wesler did not issue § 87(2)(b) a summons on scene because there was a large disorderly crowd in the area, and PO Wesler did not believe it was safe. PO Wesler did not take § 87(2)(b) to the stationhouse for any reason other than the disorderly crowd.

Per Patrol Guide Procedure 209-09, Personal Service of Summonses Returnable to Traffic Violations Bureau or Criminal Court (Board Review 18), when issuing a summons returnable to the Traffic Violations Bureau or Criminal Court, members of service may remove a violator to a command for investigation if doubt concerning the violator’s identity exists.

The ruling in *Matter of Alfred B.*, 180 N.Y.S.3d 470 (2022) (Board Review 29) suppressed a firearm discovered during the search officers conducted before transporting a 16-year-old, who did not have identification with him, to a stationhouse for a jaywalking summons. The Court held that the firearm’s recovery was a product of the officer’s violation of Criminal Procedure Law § 150.20. According to that statute, a summons or appearance ticket must be issued, in lieu of arrest, for a violation or a low-level crime where the accused makes his verifiable identity known to the officer. The Court held that where the accused provides identifying information, the officer must take reasonable steps to verify that information before proceeding to make an arrest. In *Matter of Alfred B.*, the accused provided the police with his name, his father’s name, his age, and his address. The court held that under CPL § 150.20, when presented with an accused who, although lacking photo ID, is cooperative and provides information regarding his identity, the officer may not immediately take that person into custody. Rather, the officer must first make reasonable attempts to verify the identity of the accused based upon the information provided. The Court also noted that the officers’ body-worn camera videos did not reveal a crowd forming or any other unsafe conditions at the scene that might justify transport to a stationhouse.

§ 87(2)(g)

BWC video shows that

when § 87(2)(b) was apprehended and taken to the police vehicle, there was no crowd interfering with the officers' police actions. § 87(2)(g)

§ 87(2)(b) BWC video shows that § 87(2)(b) provided his name, and PO Wesler did not articulate any concerns about § 87(2)(b) identity. § 87(2)(g)

§ 87(2)(b) BWC videos show that the officers made no effort to ascertain or confirm § 87(2)(b) identity before detaining him at a stationhouse. § 87(2)(g)

it is recommended that **Allegation L** be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- PO Crespo has been a member of service for 10 years and has been a subject in 20 other CCRB complaints and 52 allegations, of which one was substantiated (Board Review 19):
 - Case #202302572 involved substantiated allegations of discourtesy (word) against PO Crespo. The Board recommended Command Discipline B and the NYPD did not impose discipline.
- PO Pulgarin has been a member of service for seven years and has been a subject in 19 other CCRB complaints and 53 allegations, of which four were substantiated (Board Review 20):
 - Case #202008510 involved substantiated allegations of entry of premises against PO Pulgarin. The Board recommended Formalized Training and the NYPD did not impose discipline.
 - Case #202204476 involved substantiated allegations of forcible removal to hospital against PO Pulgarin. The Board recommended Command Discipline A and the NYPD did not impose discipline.
 - Case #202307170 involved substantiated allegations of property damaged against PO Pulgarin. The Board recommended Command Discipline A and the NYPD did not impose discipline.
 - Case #202310594 involved substantiated allegations of improper use of body-worn camera against PO Pulgarin. The Board recommended Formalized Training and the NYPD did not impose discipline.
 - § 87(2)(g)
- PO Wesler has been a member of service for six years and has been a subject in 22 other CCRB complaints and 69 allegations, of which 13 were substantiated (Board Review 21):
 - Case #202206524 involved substantiated allegations of failure to provide RTKA card, frisk, search (of person), and stop against PO Wesler. The Board recommended Charges and there is no listed NYPD penalty.
 - Case #202206762 involved substantiated allegations of physical force and stop against PO Wesler. The Board recommended Charges and there is no listed NYPD penalty.
 - Case #202304206 involved substantiated allegations of frisk and question against PO Wesler. The Board recommended Command Discipline B and there is no listed NYPD penalty.

- Case #202304491 involved substantiated allegations of frisk, search (of person), and stop against PO Wesler. The Board recommended Command Discipline B and the NYPD did not impose discipline.
- § 87(2)(g) [REDACTED]

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of December 16, 2024, the New York City Office of the Comptroller had no record of a Notice of Claim being filed in regard to this incident (Board Review 22).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 12

Investigator:	<u>Tomiche Martinez</u>	<u>Inv. Tomiche Martinez</u>	<u>04/02/2025</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Samuel Ross</u>	<u>IM Samuel Ross</u>	<u>01/02/2026</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date